

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE RAYMOND P. MOORE**

Courtroom Deputy: Julie Dynes/Kally Myhaver
Court Reporter: Tammy Hoffschildt

Date: June 27, 2022

CASE NO. 18-cv-01665-RM-NYW

Parties

Counsel

KENNETH OLSEN,

Dylan Unger
Erica Vecchio

Plaintiff,

v.

OWNERS INSURANCE COMPANY,

Evan Stephenson
Hannah McCalla

Defendant.

COURTROOM MINUTES

JURY TRIAL – DAY 1

Court in session: 8:29 a.m. Jury panel is not present.

Appearances of counsel. Also present at counsel table for plaintiff is paralegal Emily Serman and for the defendant is client representative Chris Hoag.

Discussion held regarding issues surrounding previous stipulation as to medical bills.

ORDERED: Workers' compensation carrier paid medical bills will be allowed in.

Discussion held on testimony regarding plaintiff's relationships.

ORDERED: Testimony as to the plaintiff's relationship with his fiancée at the time is EXCLUDED.

Discussion held on previous order regarding impairment.

ORDERED: Testimony and evidence as to workers' compensation impairment is EXCLUDED.

Discussion held on jury instructions.

Court in recess: 8:49 a.m.

Court in session: 9:06 a.m. Jury panel is present.

All jurors sworn for voir dire.

Attorneys and parties are introduced.

Court's statement of the case to jurors.

Court advises jury panel regarding its jury selection practice.

Excused for cause:

1. 100425473
2. 100432266

Voir dire of the jury panel by the Court.

10:35 a.m. Court in recess.

10:50 a.m. Court in session – jury panel present.

10:52 a.m. Voir dire of the jury panel by Ms. Vecchio.

11:08 a.m. Voir dire of the jury panel by Mr. Stephenson.

Challenges for cause:

1. 100428859
2. 100449494

Additional jurors called to replace excused jurors.

Excused for cause:

3. 100426722

Additional juror called to replace excused juror.

Voir dire of additional jurors by the Court.

Excused for cause:

4. 100443056

Additional juror called to replace excused juror.

Voir dire of additional juror by the Court.

Plaintiff's Peremptory Challenges:

1. 100448426
2. 100465921
3. 100425473

Defendant's Peremptory Challenges:

1. 100451221
2. 100432705
3. 100426211

11:46 a.m. Eight jurors sworn to try the case:

1. 100464243
2. 100440605
3. 100423840
4. 100445425
5. 100460495
6. 100464183
7. 100470321
8. 100448227

Court instructs the jury on its practices for trial and provides admonitions to the jury.

Jury excused.

Court in recess: 12:11 p.m.

Court in session: 1:43 p.m.

Jury enters.

1:47 p.m. Opening statement by Mr. Unger.

2:07 p.m. Opening statement by Mr. Stephenson.

Stipulations read to the jury.

Plaintiff, Kenneth Olsen, called and sworn.

2:38 p.m. Direct examination of Mr. Olsen by Mr. Unger.
Exhibits 2, 3, 13 and A4 are admitted.

Jury excused.

The Court outlines timeline as to jury instructions.

Court in recess: 3:15 p.m.

Court in session: 3:35 p.m. Jury not present.

Discussion held on power outage.

Court in recess: 3:37 p.m.

Court in session: 3:39 p.m.

Jury enters.

Jury excused for the day due to power outage and are to return at 8:30 a.m. tomorrow.

Court in recess: 3:43 p.m.

Total in court time: 04:48

Trial continued.